

Non –disclosure Agreement

(NDA) Form

This Non –disclosure Agreement (the" agreement ") is entered into on this (...) day of DD-MM – 20YY by and between :

1. Telecom Egypt , and an S.A.A company organized and operating under the law # 19/1998, head quartered at building 7k28cairo Alexandria desert road B7 smart village Area 12577 Egypt ,hereinafter referred to as "**TE**" and /or "**First party** ",represented herein by its duly authorized representative's

And

2. **Company name**, a company organized and operating under the law of () , whose registered office is at (please inter address)hereinafter to as "(company name) and l or "**second party** ", represented herein by its duly authorized representatives (.....)

Herein after referred to individually as the "**party**" or collectively as the **parties** .

Whereas, **TE** and the second party wish to transact with one another in connection with the purpose , as hereinafter described and defined ,and such will entail mutual disclosure by each of the parties (the" **Disclosing party** ") to the other (the" **Receiving party** ") of certain confidential information , as hereinafter defined ;and

Now , therefore, in consideration for each parties agreeing to disclose the confidential information to the Receiving Party , each of the parties hereby agrees as follow :

1. In This Agreement

"Authorized of a party" : means , a body corporate that controls or in controlled by , or is under common control ,with the party . for the purpose of this definition " control " means the ability , whether direct or indirect or influence the management and policies of a party in any way .

"Authorized person " : means , any of the individual , officers ,employees, consultant and advisors of a party or those of an Associate of a party as are strictly necessarily for the purpose considering ,evaluating and negotiating the purpose , and as amended from time to time who have a " need to know " in order to carry out the purpose of enable the receiving party to exercise its rights under this agreement .

"Confidential Information" : means , regardless of the disclosure or the medium used to store it , all information disclosed to the receiving party ,whether on, or after the date of this agreement , either through disclosure by the disclosing party to the receiving party, or otherwise through the receiving party involvement with the disclosing party ,which information is marked as confidential or proprietary at the time of disclosure or if given orally , is stated to be confidential at the time of disclosure and a written summary whereof marked as confidential is provided to receiving party within 7 days of oral disclosure ,but does not include information that :

- a. The receiving party creates (whether alone or jointly with any person) independently of the disclosing party's confidential information ;
- b. Is public knowledge either at the date of the disclosure by the disclosing party or subsequently becomes public knowledge through no act or failure to act on the part of receiving party or act authorized person contrary to the terms of this agreement ;or
- c. Is obtained without restriction as to further disclosure from a source other than the disclosing party through no breach of confidentiality by that source ; or
- d. Is lawfully known to the receiving party at the date of disclosure to the receiving party by the disclosing party and is not subject to any restriction on disclosure imposed by a third party ,

And, for the purpose of this definition , references to "**Disclosing party**" include associates and personnel of that party and references to "**Receiving party**" shall include any authorized person and /or associate of that party .

Purpose : means , every transaction discussed , as of the date of this agreement , between TE and the second party related to the TE network , which is the purpose for which the confidential information is being disclosed under this agreement

2. Except as expressly provided otherwise in this agreement , the receiving party shall keep confidential information received in connection with the purpose ,and shall:
 - a. Only use the confidential information for the purpose ; and
 - b. Not disclose to any person or entity any confidential information ,or that discussion are taking place between the parties concerning the confidential information or he purpose .
3. The receiving party
 - a. May disclose the confidential information to any authorized person ;and
 - b. Shall procure that each of the authorized person to whom confidential information is disclosed is made aware of the provisions of this agreement and the receiving party shall use reasonable endeavors to

ensure that each authorized person adheres to those provisions as it had been a party to this agreement

4. The receiving party shall exercise the same degree of care to guard against disclosure or use of the confidential information as the receiving party employs with respect to its own confidential information but, in the any event, not less than reasonable care.
5. The receiving party shall give disclosing party prompt written notice containing full details of (i) any misuse or misappropriation of confidential information that may come to receiving party's attention and (ii) subject to applicable laws ,rules and regulations, any proposed disclosure of confidential information under paragraph 6 below .
6. The obligations of confidentiality in this agreement do not apply to the extent disclosure is required by applicable law or order of a relevant court of law, Data Privacy laws ,or directions of any government or statutory or regulatory authority with authority to regulate or to direct either or both parties to this agreement ,provided that the receiving party shall ,to the extent reasonably practicable:
 - a) Give prompt notice to the required of disclosure to the disclosing party
 - b) To the extent lawful and practicable to do so prior to disclosure ,consult with disclosing party as to the disclosure requirement with a view to agreeing the extent ,content and timing of the disclosure;
 - c) Restrict the disclosure to the information expressly required to be disclosed; and
 - d) Stamp or otherwise identify as confidential all such information at the time of its disclosure.
7. On the earlier of termination of this agreement or the disclosing party's request ,all confidential information stored in any medium (including , without limitation ,incorporated in computer software or held in electronic storage media),together with that part of any documents or materials containing confidential information ,as is in possession or control of the receiving party shall be destroyed by the receiving party ,other than such copies as the receiving party may be required by the law to retain . within thirty (30)days' of the disclosing party's request ,the receiving party shall certify in writing to the disclosing party that it has complied in full with its obligations under this clause .
8. All confidential information disclosed under this agreement shall be and remain the property of the disclosing party . the provision of confidential information to the receiving party shall not result in any obligation on the part of the disclosing party to grant the receiving party any rights in connection with the purpose .
9. The receiving party agrees that the breach of this agreement may cause irreparable damage to the disclosing party for which monetary damage are not a sufficient remedy ,and the disclosing party shall be entitled to seek specific performance or injunctive relief to prohibit any breach or threatened breach of this agreement.

10. Nothing in this agreement shall require the receiving party or authorized persons to alter or deviate from their respective normal record retention policies or to expunge from their records, electronic media, internally generated files, references, notes, analysis and memoranda any confidential information or references to confidential information, provided always that such information is kept confidential and this obligation shall survive the termination of this agreement for a period of two (2) years .
11. The rights ,powers and remedies of a party under this agreement are cumulative with the rights ,powers and remedies provided at law and in equity independently of this agreement .A party may exercise a right power or remedy at its discretion ,and separately or concurrently with another power or remedy .A single or partial exercise of a right, power or remedy by a party does not prevent a further exercise of that or of any other right ,power or remedy. The failure of a party at any time to insist on performance of any provision of this agreement is not a waiver of its rights any later to insist on performance that or any other provision of this agreement .
12. To the extent permitted by law:
 - a) The disclosing party excludes all express and implied warranties in connection with the confidential information and without limitation , the disclosing party does not warrant or represented that :
 - b) The disclosing party will disclose any particular kind of quantity of information ;or
 - c) The confidential information is complete ,accurate sufficient or suitable for receiving party's purpose; and
 - d) The disclosing party shall not have any liability or responsibility for any errors or omissions in, or any decision made by the receiving party in reliance on, the confidential information .
13. Each party acknowledges that :
 - a) Nothing in this agreement constitutes a relationship of a joint venture ,partnership, employer and employee ,or principal and agent, or other formal business relationship or entity of any kind ,or an obligation to form any such relationship or entity ,between the parties and neither party has the right to bind the other party in contact or otherwise at law;
 - b) Providing or receiving confidential information under this agreement shall not constitute an offer ,acceptance ,or promise to enter into or amend any other contract; and
 - c) The disclosure of confidential information shall not be conferring on or granting to the receiving party any rights in any confidential information , other than the limited right to use the confidential information as permitted by this agreement.
14. This agreement and the rights and obligations hereunder shall not be assignable or transferable by either party without the prior written consent of the other party .
15. This agreement contains the entire agreement between the parties as to its subject matter and supersedes all prior communications and agreement in connection with that subject matter .



16. This agreement shall come into force on () ,and shall continue in full force and effect until the confidential information comes into the public domain or five years after termination of the propose in writing by either party (whichever is earlier) or upon the execution of a contract between the parties that ,by express written agreement of the parties ,supersedes this agreement .
17. on termination of this agreement :
- a) The receiving party 's rights to use the disclosing party's confidential information will cease.
 - b) The receiving party's obligation to keep confidential information shall survive for two (2) years after termination ;and
 - c) Any other parts of this agreement that, by their nature ,are intended to survive termination will do so .
 - d) The termination of this agreement shall not affect a party 's accrued rights or remedies .
18. This agreement and any dispute arising out of or in connection with it shall be construed and enforced in accordance with the laws of Arabia Republic of Egypt .All disputes , differences , questions between the parties to this agreement with respect to any matter arising out of or relating to the agreement may be amicably settled by representatives of the parties . in the event amicable settlement is not reached , the dispute shall be referred to and finally determined by arbitration in accordance to the arbitration Law No.27of 1994 under the rules of Arbitration of Cairo Regional Center for International Commercial Arbitration (the "CRCICA"). The arbitration tribunal shall be composed of three (3) arbitrators . the sessions shall be in Cairo , and the arbitrations langue shall be Arabic language.
19. This Agreement shall be governed by, and construed in accordance with EGYPT laws and the EGYPT courts shall have jurisdiction over any proceedings arising out of or in connection with it.

IN WITNESS HEREOF the parties hereto have caused this agreement to be signed .

For and on behalf of the first party :

for and on behalf of second party:

Name and title :

Name and title :

Signature :

signature :

Date :

Date :